
Scole Primary School Visit Report**Audit Date: 05/03/20****Report: Year 2 visit 1****DPE: Stuart Lee****School member: Clair Vosper (HT) and Claire Buck (office)**

1. Visit details

In addition to the audit walk, key GDPR documentation was reviewed and DPE best practice areas were discussed with the school. The school have already had remote sessions with Kalina (DPE) which they found useful. The best practice guide was distributed during the visit and will be displayed in each classroom. Most staff have completed the DPE GDPR e-learning modules. The school were signposted to the additional bitesize training.

Some of the visit focus was on discussing how GDPR can be used as a tool for improving practice:

- Discussed cloud computing and report writing using the cloud and developing work away from school documentation;
- School developing communications with supply staff and supply staff having a folder that is handed out for communicating medical/allergy details and fire lists. This would reduce the need to have sensitive data on display. Staff accessing the MIS to access student details (scan and attach medical details); school can also utilise its MIS system; to scan student data and attach to the student record; train staff in how to access parental contact information. Main advantage being:
 1. Reduce the need to have printed copies of sensitive data
 2. Minimise admin disruption for staff requesting contact numbers etc from the front office
 3. Improve efficiencies and need for multiple copies (minimise data risks) of the same data
- Discussed having printer codes and how this will also result in cost savings. The school can trial for admin and the headteacher, as there were risks of students collecting sensitive data and printed documents getting mixed with classroom resources being collected from photocopier i.e. finance and Safeguarding. School to contact IT technician;
- Governance documents: **SL to send gov hub document to Clair (attached with report).**

2. Audit walk findings

The headteacher now has lockable storage and the school has started the process of moving to forename only. From the visit the school will assess how data is currently displayed and minimise as appropriate.

School to refer to previous reports for outstanding walk actions. Latest audit walk comments are detailed below:

Classrooms and open areas -action points:

- Coat pegs to be forename only
- Folders to contain forename
- Lists that were produced with full name, where they are not part of a process (i.e. handed out and returned to the office) to be forename only

Headteachers office – action points:

- Purchase a mini coded key safe to add keys to
- Lock door at the end of the day

Front office – action points:

- Reshuffle and add sensitive files to cabinets
- Add a lock(s) to the cabinets where sensitive data will be added
- Remove/cover lists that contained full name/operate a folder system

Staffroom, allergy/medical details – action points:

- School to minimise to forename only and cover, or ideally use a folder system

Printer/photocopier – action point:

- **Printer codes:** Liaise with Konica and investigate adding secure printer codes.

3. Compliance actions that should now be completed

Initial documents:

- Privacy Notice
- GDPR Policy
- Data Breach Procedure.
- SAR procedure
- Photo and Video consent

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. If using GDPRiS this should also be kept updated. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data breach procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

3.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf
- DfE toolkit
https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5,1)

3.2. Staff training

GDPR training should be completed and documented. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

3.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

3.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

4. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

5. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#)) (School uses St Nicolas Priory for ICT support)

6. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

6.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

7. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>

